

**MEMORANDUM OF UNDERSTANDING BETWEEN THE
GOVERNMENT OF THE UNITED STATES OF AMERICA AND
THE GOVERNMENT OF THE REPUBLIC OF RWANDA
CONCERNING THE REMOVAL OF THIRD COUNTRY NATIONALS**

The Government of the United States of America ("United States") and the Government of the Republic of Rwanda ("Rwanda"), hereinafter referred to individually as a "Participant" or collectively as "Participants";

1. **AFFIRMING** the strong and cooperative bilateral relationship between Participants;
2. **ACKNOWLEDGING** that Rwanda and the United States regulate their foreign relations in accordance with their international obligations and respective domestic laws, with a shared commitment to maintaining peace and freedom, upholding fundamental human rights, and strengthening democratic processes and international institutions dedicated to these goals;
3. **EMPHASIZING** the importance of the sovereign right of each Participant to control its own borders;
4. **NOTING** the shared urgency of curbing illegal migration for the public safety and security of each Participant and concerned by the threats posed by certain individuals capitalizing on illegal migration;
5. **INTENDING**, according to each Participant's abilities and responsibilities, to work closely and cooperatively in a spirit of mutual respect and support;
6. **NOTING** Rwanda's established expertise in managing complex return and integration and reintegration processes, including the reintegration of individuals requiring structured support; and
7. **RECOGNIZING** that Rwanda is a party to the 1951 Convention Relating to the Status of Refugees, done at Geneva on July 28, 1951 (the "1951 Convention"), the Protocol Relating to the Status of Refugees, done at New York on January 31, 1967 (the "1967 Protocol"), and the Convention against Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment, adopted in New York on December 10, 1984 (the "Convention Against Torture"), and that the United States of America is a party to the 1967 Protocol and the Convention Against

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Torture, and reaffirming their obligations to promote and protect human rights and fundamental freedoms in accordance with their international obligations;

Have reached the following understandings:

Section 1. The United States intends to cooperate pursuant to this Memorandum as follows:

- 1.1. Collaborate with Rwanda, on an ongoing basis, to identify third country nationals (TCNs) – meaning individuals who are not nationals of the United States or Rwanda – who are present in the United States and may be removed to Rwanda. This may include TCNs with relevant security or public safety considerations.
- 1.2. Provide Rwanda with an upfront disbursement of USD 7,500,000 to strengthen Rwanda's border and migration management capacity, including relocation assistance and associated infrastructure necessary to administer such assistance.

Section 2. Rwanda intends to cooperate pursuant to this Memorandum as follows:

- 2.1. Apply the immigration procedures for the transfer of TCNs that the United States removes to Rwanda in accordance with Rwandan national laws.
- 2.2. Act in accordance with its national and international obligations, including the 1951 Convention Relating to the Status of Refugees, the 1967 Protocol, and the 1984 Convention Against Torture, including prevention of refoulement and access to asylum and protection systems.
- 2.3. Facilitate access for the United States to remove up to 250 TCNs to Rwanda after Rwanda has approved their removal to Rwanda. The 250 TCNs need not arrive in Rwanda at the same time.
- 2.4. Provide appropriate legal status or other legal accommodations under Rwandan law to TCNs upon arrival in Rwanda.

Section 3.

- 3.1. Nothing in this Memorandum limits the capacity of Rwanda to continue to implement independently its immigration procedures under its jurisdiction, competence, criteria, procedures, authority, laws, and with its own funds.
- 3.2. Nothing in this Memorandum creates any rights or obligations under Rwandan law, U.S. law, or international law.

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Section 4.

- 4.1. Nothing in this Memorandum is intended to create any obligation upon the Participants to disburse or obligate funds, nor is it intended to impose any obligation to accept or approve the reception of TCNs.
- 4.2. All actions undertaken consistent with this Memorandum are subject to the availability of funds and the applicable laws and regulations of both Participants.

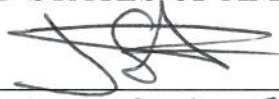
Section 5. This Memorandum is not intended to establish, nor does it establish, in any manner whatsoever, rights of any kind in favor of any third party against any of the Participants, their institutions, agencies, officers, employers, or agents, either collectively or individually.

Section 6.

- 6.1 This Memorandum is effective on the date of signature by the later of the Participants.
- 6.2 Either Participant may discontinue its participation in this Memorandum at any time but should endeavor to provide written notice to the other Participant through diplomatic channels. It is understood that the discontinuation mentioned in this item does not require acceptance by the other Participant.
- 6.3 This Memorandum, including any annexes, may be modified in writing by mutual decision of the Participants.
- 6.4 The Participants intend for any difference that may arise regarding the interpretation or implementation of this Memorandum to be resolved through diplomatic channels.

Signed,

FOR THE GOVERNMENT OF THE
UNITED STATES OF AMERICA



Date: June 3, 2025
Place: Kigali, Rwanda

FOR THE GOVERNMENT OF THE
REPUBLIC OF RWANDA



Date: June 3, 2025
Place: Kigali, Rwanda


ANNEX A
**Procedures for the Removal of Third Country Nationals from
the United States to Rwanda**

The Participants intend to use the following procedures to implement this Memorandum:

1. United States officials determine independently and under their own authority which third country nationals with final orders of removal it would like to remove to Rwanda.
2. Once the United States identifies third country nationals for removal to Rwanda, the liaison designated by the United States notifies the liaison designated by Rwanda and provides the following information:
 - a. List of persons.
 - b. Demographic information.
 - c. Criminal records, criminal investigations, or security issues, if applicable.
 - d. Estimated schedule for the removal.
 - e. Any special needs and/or health issues that need to be accommodated by Rwanda.
 - f. Any available additional information requested by Rwanda and agreed to be provided by the United States.
3. The Rwanda liaison confirms that the group identified by the United States liaison may be removed from the United States to Rwanda and on the schedule provided.
4. The United States liaison coordinates and organizes the charter or commercial flight, with the goal that it can be executed within a term of ninety-six (96) hours from the moment the Rwanda liaison provides confirmation.
5. The liaisons of the Participants share information on support and coordination as necessary.

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